

310	<i>Lacambra vs. Gue</i>	Defendants Dennis Han Gue Oh dba Total Painting & Maintenance and In Tae Oh dba Total Painting and Maintenance's (Defendants) demurrer to the first amended complaint (FAC) of plaintiff Robert Lacambra is SUSTAINED with 20 days leave to amend. <u>8th cause of action (negligent infliction of emotional distress)</u>: The FAC fails to state facts sufficient to constitute this cause of action, including the existence of a legal duty. (<i>Ragland v. U.S. Bank National Assn.</i> (2012) 209 Cal.App.4th 182, 205 [negligent infliction of emotional distress under a "direct victim" theory requires the violation of a duty that the defendant owes directly to the plaintiff]; <i>Friedman v. Merck & Co.</i> (2003) 107 Cal.App.4th 454, 470 ["damages for emotional distress are recoverable when the defendant assumes a duty in which the emotional condition of the plaintiff is an object"].) Plaintiff's request for a finding pursuant to Code of Civil Procedure section 166.1 is DENIED. The 8/17/26 CMC is continued to 10/19/26 at 1:30pm. Defendants shall give notice.
311	<i>Abukamleh vs. Hyundai Motor America</i>	The Motion to Compel Binding Arbitration, filed on 5/8/26 by Defendant Hyundai Motor America (HMA) is DENIED. HMA has failed to show that the parties entered into a valid agreement to arbitrate. HMA asserts that Plaintiff Wisam Abukanileh (Plaintiff) agreed to arbitrate because HMA included an arbitration provision in its "Owner's Handbook & Warranty Information" (Warranty) for the vehicle. (Ameripour Decl., ¶ 4 and Ex. 2.) But HMA has not

shown that the Warranty reflects an actual agreement with Plaintiff: HMA does not present any evidence to show that Plaintiff signed or accepted or saw or was even informed of the arbitration provision in the Warranty.

HMA argues that equitable estoppel applies, as Plaintiff's claims rely on the Warranty. But an essential element of any contract is mutual assent. (*Donovan v. RRL Corp.* (2001) 26 Cal.4th 261, 270.) A warranty is not a traditional contract: it is effectively a unilateral promise to the consumer. (*Gavaldon v. DaimlerChrysler Corp.* (2004) 32 Cal.4th 1246, 1258; *Daugherty v. American Honda Motor Co., Inc.* (2006) 144 Cal.App.4th 824, 830 ["A warranty is a contractual promise from the seller that the goods conform to the promise."]) Equitable estoppel thus cannot apply in this context. Nor are Plaintiff's claims clearly dependent upon the Warranty. (See *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1133 [warranty claims arise from a statutory scheme; unless properly disclaimed, every retail sale of consumer goods includes the implied warranty that the goods are merchantable], in addition to any express warranty provided by the manufacturer.) HMA has thus failed to show that equitable estoppel applies here.

As HMA has failed to establish that an enforceable arbitration agreement exists between HMA and Plaintiff, the Motion is **DENIED**.

HMA's Request for Judicial Notice is **GRANTED** under Ev. Code §452(d), as to the existence of the record.

HMA shall file a response by 9/4/26.

Counsel for HMA is to give notice of this ruling.